



Torres Strait Fisheries (Trochus) Management Instrument 2025

The Protected Zone Joint Authority make the following instrument.

Dated 19 December 2025

The Hon Julie Collins MP, Commonwealth Minister for Agriculture, Fisheries and Forestry

The Hon Anthony (Tony) Perrett MP, Queensland Minister for Primary Industries

Mr George Nona, Chairperson, Torres Strait Regional Authority

For and on behalf of the Protected Zone Joint Authority

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1 Name

This instrument is the *Torres Strait Fisheries (Trochus) Management Instrument 2025*.

2 Commencement

This instrument commences on the day after it is registered on the Federal Register of Legislation.

3 Authority

This instrument is made under section 16(1) and section 35(1)(a) of the Act.

4 Definitions

Note: A number of expressions used in this instrument are defined in section 3 of the Act, including the following:

- (a) fish
- (b) traditional inhabitant
- (c) traditional fishing.

In this instrument:

Act means the *Torres Strait Fisheries Act 1984*.

hookah gear means equipment to enable a person to breathe underwater where the air is supplied from either an air compressor or one or more air cylinders above the surface of the water, and includes equipment which may be described as surface supplied breathing equipment or surface supplied breathing apparatus.

PZJA Arrangement means the document titled “*Arrangement between the Commonwealth and the State of Queensland under section 31 of the Torres Strait Fisheries Act 1984*” dated 17 March 1999 and published on the Federal Register of Legislation, as that document exists at the commencement of this instrument.

Note: The PZJA Arrangement could be viewed on the website of the Federal Register of Legislation at: <https://www.legislation.gov.au/Details/F2008B00750>.

Regulations means the *Torres Strait Fisheries Regulations 1985*.

trochus means fish of the species *Tectus niloticus* (previously *Trochus niloticus*).

trochus fishery means the area of the trochus fishery prescribed in item 8 of Schedule 2 to the *Torres Strait Fisheries Regulations 1985*.

trochus licensed person means a person who has been granted a licence under subsection 19(2), 19(3) or 19(4A) of the Act that authorises the taking, processing or carrying of trochus in the trochus fishery.

underwater breathing apparatus includes **hookah gear** and self-contained underwater breathing apparatus (known as SCUBA).

5 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

6 Prohibition on taking, processing or carrying trochus

- (1) The taking, processing or carrying of trochus in the area of the trochus fishery is prohibited.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

- (2) A person is exempt from the prohibition in subsection (1) when:

- (a) The person is a trochus licensed person.

7 Prohibition on the use of certain methods and equipment

- (1) The taking, processing or carrying of trochus by a trochus licensed person is prohibited by a fishing method or with equipment other than:

- (a) by hand; and
(b) without the use of underwater breathing apparatus.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

8 Prohibition on taking, processing or carrying of trochus of a certain size

- (1) The taking, processing or carrying of trochus by a trochus licensed person is prohibited where, measured in their original form as fished, the trochus are less than 80 millimetres or more than 125 millimetres, at the widest part of the base of the shell.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

Schedule 1—Repeals

Torres Strait Fisheries Management Instrument No. 13

1 The whole of the instrument

Repeal the instrument.